

24SMCV04025 24SMCV04025

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-14

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The court is inclined to GRANT the motion and advance the hearing date to 8/19/26 at 9:00 am. Any opposition will be filed by noon on Monday 8/17/26. There will be no reply. Defense counsel is warned that if the motion is granted, the court might order that the deposition go forward without objection on a date and time to be decided by plaintiff (so long as it is a court day) provided that plaintiff give 2 court days' notice. The failure to obey that order could result in evidentiary, issue, or terminating sanctions. The alternative, of course, would be for the defense to propose deposition dates in a month beginning with the letter "A." If those dates work for plaintiff, that will be sufficient from the court's perspective. Uber is free to have only a couple people who it will authorize to be PMK's on a national level if that is what it wants to do. But it must make them available on reasonable notice and, once booked, make sure that the date is kept. The court has no understanding as to why it is that a date suggested by Uber and confirmed by plaintiff was then unilaterally canceled and done without alternative dates being proposed.

The court is aware of the reservation of a hearing date to compel the second deposition of plaintiff.

The court has not seen those papers, and the court suspects that there will be an ex parte to advance that hearing date as well. The parties ought to meet and confer on two things in that regard. First, whether plaintiff is willing to agree to be deposed a second time. Second, if plaintiff is willing OR the court so orders, a date for the deposition.

The court at this time expresses no opinion on whether or not plaintiff ought to be deposed again; the court will need to read the papers. The court is only saying that time is tight.

The court will also inquire as to how the mediation went. (The parties will recall that the

mediation completion date was April 15.)